

25PSCV02035 25PSCV02035

County: los-angeles

Division: Civil Law and Motion

Department: H

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Carungcong v. Home Depot U.S.A., Inc., et al., Case No. 25PSCV02035

ORDER ON MOTIONS TO COMPEL

1. Plaintiff Soledad Carungcong's Motions to Compel HOME DEPOT U.S.A., INC.'S Responses to Interrogatories [Set One] is DENIED. Plaintiff's request for sanctions is DENIED.

2. Plaintiff Soledad Carungcong's Motions to Compel HOME DEPOT U.S.A., INC.'S Responses to Requests for Production [Set One] is DENIED. Plaintiff's request for sanctions is DENIED.

Background

Plaintiff Soledad Carungcong ("Plaintiff") alleges as follows:

On October 25, 2024, Plaintiff was lawfully walking at a Home Depot, located at 2220 South Azusa Ave., West Covina, CA, in its outdoor area near the displayed barbecues when she tripped on the attached anti-theft cables and fell.

On June 2, 2025, Plaintiff filed a complaint, asserting causes of action against Home Depot U.S.A. Inc. ("Home Depot"), Brittany Turner, and Does 1-25, inclusive, for: (1) Negligence – General, (2) Negligence – Hiring, Supervision & Retention, and (3) Premises Liability.

1. Motion to Compel Verified Responses to Interrogatories

Legal Standard

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2030.290.) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., §§ 2030.290, subd. (a).) A party moving to compel discovery responses under this statutory provision is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., §§ 2030.290, subd. (b); see also Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411 [citing Leach v. Superior Court (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to

respond ‘within the statutorily permitted time’].)

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c).)

Discussion

Plaintiff moves the court for an order compelling Home Depot to provide verified responses to Plaintiff’s First Set of Form Interrogatories and Special Interrogatories. Plaintiff also seeks sanctions against Home Depot and its counsel of record in the amount of \$1,200.00.

Plaintiff’s counsel Lakshmi Odedra (“Odedra”) represents as follows:

On August 12, 2025, Plaintiff served the subject discovery. (Odeda Decl., ¶ 2, Exhs. 1-2.) On September 8, 2025, counsel’s office granted Home Depot a 30-day extension until October 13, 2025 to serve responses. (Id., ¶ 7, Exh. 3.) Home Depot’s counsel requested multiple extensions. (Id., ¶¶ 8-15.) On February 6, 2026, Home Depot served objections only responses. (Id., ¶ 16, Exhs. 10-11.) On March 10, 2026, after Plaintiff’s counsel emailed regarding the deficient responses, Home Depot’s counsel requested an extension to provide complete and verified responses to discovery. (Id., ¶ 18.) On March 20, 2026, the parties met and conferred wherein they agreed to one final extension to March 31, 2026. (Id., ¶ 19.) On April 2, 2026, the Court informed Plaintiff that she could proceed with motions to compel rather than motions to compel further; the Court also ordered the parties to meet and confer within two weeks. (Id., ¶ 21, Exh. 14.) Plaintiff reached out to Home Depot to meet and confer, but Home Depot did not respond to counsel’s emails or calls. (Id.)

On August 3, 2026, Plaintiff filed a notice of non-opposition.

It appears to the Court that the appropriate vehicle for the relief sought is a motion to compel further responses. While the topic of discovery may have come up at the Case Management Conference on April 2, 2026, the minute order from the hearing does not reflect or support Plaintiff’s position that she could proceed with a motion to compel rather than the more appropriate motion to compel further.

The motion is denied.

Sanctions

Plaintiff seeks sanctions against Home Depot and its counsel of record in the amount of \$1,200.00 [calculated as follows: 2 hours for preparing the motion and supporting documents at \$600.00/hour.] Because the motion was denied, the Court denies Plaintiff’s request for sanctions.

2. Motion to Compel Responses to Requests for Production

Legal Standard

If a party to whom inspection demands were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2031.300, subd. (b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., § 2031.300, subd. (a).) A party moving to compel discovery responses under this statutory provision is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., § 2031.300,

subd. (b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that “meet and confer” requirement “did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party’s failure to respond ‘within the statutorily permitted time’”].)

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

Discussion

Plaintiff moves the court for an order compelling Home Depot to provide verified responses to Plaintiff’s Requests for Production, Set No. One. Plaintiff also seeks sanctions against Home Depot and its counsel of record in the amount of \$1,200.

Plaintiff’s counsel Lakshmi Odedra (“Odedra”) represents as follows:

On August 12, 2025, Plaintiff served the subject discovery. (Odeda Decl., ¶ 2, Exhs. 1.) On September 8, 2025, counsel’s office granted Home Depot a 30-day extension until October 13, 2025 to serve responses. (Id., ¶ 7, Exh. 2.) Home Depot’s counsel requested multiple extensions. (Id., ¶¶ 8-15.) On February 6, 2026, Home Depot served objections only responses without a statement of compliance or productions of responsive documents. (Id., ¶ 16, Exh. 10.) On March 10, 2026, after Plaintiff’s counsel emailed regarding the deficient responses, Home Depot’s counsel requested an extension to provide complete and verified responses to discovery. (Id., ¶ 18.) On March 20, 2026, the parties met and conferred wherein they agreed to one final extension to March 31, 2026. (Id., ¶ 19.) On April 2, 2026, the Court informed Plaintiff that she could proceed with motions to compel rather than motions to compel further; the Court also ordered the parties to meet and confer within two weeks. (Id., ¶ 21.) Plaintiff reached out to Home Depot to meet and confer, but Home Depot did not respond to counsel’s emails or calls. (Id.)

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The motion is denied.

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